

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 6/23/26      TIME: 9:00 A.M.      DEPT: G      CASE NO: FL 1904143

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER:    DI YAO

and

RESPONDENT:    FEI XIE

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY;  
ATTORNEY’S FEES; REIMBURSEMENT OF CHILD SUPPORT

**RULING**

Respondent Fei Xie (Mother) filed a Request for Order (RFO) on April 28, 2026 for (1) child custody and parenting orders with respect to the parties’ children, Malvina (DOB 11/23/2014) and Mirabelle (DOB 05/03/2017), (2) attorney’s fees and costs, (3) reimbursement for child support Add-ons and an order to fix the amount of child support add-ons owed by Petitioner at \$6,374.91, through April 27, 2026.

Petitioner filed a responsive declaration on 06/11/2026. Petitioner requests that (1) the Court adopt the Family Court Services (FCS) recommendations, (2) order a payment plan for child support add-ons, and (3) Deny attorney’s fees and costs.

Respondent filed a reply adding on additional costs to her request.

**Custody**

Respondent’s requests included a request for parenting orders that include not using the children as messengers or involving them in court matters, not leaving the children unsupervised, unfettered access to communicate with the non-custodial parent via telephone, messaging or FaceTime, and requiring separate beds at Petitioner’s home. Respondent also requests Petitioner take parenting classes.

The parties were referred to Family Court Services (FCS), and FCS filed a report on June 8, 2026. Both parents and both children were interviewed. FCS reports the parties reached several agreements and FCS also made recommendations. The Court finds it is in the best interest of the children to adopt the mediated agreement and recommendations of FCS, as modified herein:

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Joint legal and physical custody shall remain in place.
2. Parental Timeshare:
  - a. The children shall be in Father's custody on alternate weekends from Friday after school through Sunday morning drop off at swim practice in Tiburon. If Father can get the girls to their Chinese class following swim practice on Sundays, he has the option to extend his custodial time to Sunday afternoon. The children shall be in Mother's custody at all other times when not in Father's custody.
  - b. Commencing school year 2026 – 2027, provided Father has consistently exercised his alternating weekend schedule during summer 2026, if the girls wish to spend Sunday overnights with Father on his alternate weekends, they shall be permitted to do so, and Father shall drop the children off at school on Monday morning.
3. Neither parent shall disparage the other parent to the children or within hearing of the children.
4. Parents may modify the timeshare at any time per mutual parental agreement.
5. Communications regarding timeshare scheduling shall occur between the parents only. Parents shall not use the children as messengers to communicate scheduling changes, to coordinate visits, etc. so as to leave them out of the middle of adult matters.
6. Each parent may travel with the children to China in alternate years. The children may have daily phone calls with the other parent when they are abroad. If the other parent does not wish to exercise daily phone calls, daily phone calls shall not be obligatory. Starting this summer, the children shall be permitted to travel to China with Father for two weeks to visit their paternal grandmother and other family members. Parents shall provide one another with confirmation of plans for international travel at least three months in advance.
7. Father shall take a parenting class focused on parenting preteen/"tween" girls.
8. Both parents shall take a coparenting class.
9. Parents shall respond to coparenting communications within 48 hours. If there has been no response to a coparenting communication, the parent initiating the communication may act on the request.
10. Neither parent shall destroy the children's personal property for the purposes of discipline or out of anger.
11. Neither parent shall use the children as messengers or involve them in adult related matters.

12. Neither parent shall leave the children unsupervised during their custodial time until the children are old and mature enough to be left unsupervised.
13. The children shall be permitted to communicate with the noncustodial parent via telephone, messaging, FaceTime, or other videoconferencing, and neither parent shall interfere with those communications or discourage the children from communicating with the other parent.

### **Add-Ons**

Father does not dispute he owes the add-ons, but he requests a payment plan for the balance of the child support add-ons. Father did not propose a specific payment plan, did not file an income and expense declaration and did not file current financial information pursuant to MCR Fam 7.13. His responsive declaration states his net monthly income from wages is approximately \$6,000. Father lodged his tax returns for 2024 and 2023. His 2024 taxes show an adjusted gross income of \$123,790 (or \$10,315.83 a month).

Mother's reply also included additional expenses through May 27, 2026. The Court declines to add those to the order.

The Court orders Father to pay Mother child support add-ons in through April 27, 2026, in the amount of \$6,374.91, payable forthwith.

### **Attorney's Fees**

Mother requests prevailing party attorney's fees based on the parties' April 1, 2026, stipulation. The stipulation provides that a party who seeks court assistance in enforcing the stipulation is entitled to attorney's fees. The stipulation was a modification of the marital settlement agreement that was negotiated with the assistance of a former judge. Father argues that his refusal to pay the add-ons was based on an honest misunderstanding of the agreement. Mother counters that her attorney explained the stipulation to Father. The stipulation provides that each party has read and understood its provisions. Regardless of whether Father misunderstood, Mother is the prevailing party and needed to enforce the agreement. Father argues he cannot pay the attorney's fees, but has not provided an income and expense declaration. Based on the financial information he has provided, the Court finds he has the ability to pay the fees.

Mother's counsel filed a declaration on April 28, 2026, stating he spent 4 hours, or \$1,500, on this issue and anticipates another 3 hours for a reply and attending the hearing. Mother's request for fees is GRANTED. Father is ordered to pay Attorney's fees in the amount of \$2,625, payable beginning August 1, 2026 in \$500 increments until satisfied, on the first of each month.

Counsel for Respondent is ordered to prepare the formal Findings and Order After Hearing.

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 6/23/26      TIME: 9:00 A.M.      DEPT: G      CASE NO: FL0001018

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

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PETITIONER:    MARINA NARBUTOVICH

and

RESPONDENT:    DZMITRY SKAREDAU

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NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

**RULING**

Petitioner (Mother) filed a Request for Order (RFO) on April 27, 2026 for: (1) modification of Custody and Visitation of the parties' child, Mark (DOB 08/28/2014), (2) modification of Child Support, (3) an EC §730/ FC §3111 custody evaluation, (5) therapy/reunification therapy, and (6) non-interference with court orders.

The parties share joint legal custody per a mediated custody agreement filed on 06/30/2025 with Mark primarily living with Respondent (Father).

**Child Custody and Visitation/Custody Evaluation**

The parties were referred to Family Court Services (FCS), which provided a comprehensive support and plan. FCS does not believe a custody evaluation is necessary at this point, and the Court agrees. Instead, Mother must do the hard work of re-connecting with Mark and meeting him where he is at this point.

The Court finds it is in the best interest of the Child to adopt the FCS recommendation as modified herein:

1.      Sole physical custody to Father.
2.      Sole legal custody to Father until further court order. Mother shall still have access to medical and educational records for Mark, but Father shall have authority to unilaterally make legal custody decisions. Father shall inform Mother when such decisions are made.
3.      Mother shall take a parenting class focused on preteen boys.